Brazoria County District Court

Cause No. 2024-CV-0007

Caleb Peterson, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	1-14-25
Counsel for defendant:	Richard Marshall, Ashford & Lyle LLP

Defendant generally denies each and every allegation contained in Plaintiff's Original Petition and demands strict proof thereof by a preponderance of the evidence, as required by the Texas Rules of Civil Procedure.

For its first affirmative defense, Defendant asserts that the collision was caused, in whole or in part, by Plaintiff's own negligence, including failure to keep a proper lookout, faliure to yield the right-of-way, and drivnig at a speed greater than was reasonable and prudent under the conditions then existing. Under Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be reduced by the percentage of responsibliity attributed to Plaintiff.

For its second affirmative defense, Defendant asserts proportionate responsibility under Chapter 33, and requests that the trier of fact determine the percentage of responsibiltiy of each claimant, defendant, settling person, and responsible third party, and that any judgment be limited accordingly.

For its third affirmative defense, Defendant asserts that Plaintiff failed to mitigate damages by failing to follow reasonable medical advice and by incurring medical expenses that were not reasonable or necessary. Defendant reserves the right to amend this answer as discovery proceeds.